

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

POLICY COMMITTEE
RECOMMENDATION

FOR ENGROSSED

SENATE BILL NO. 2071

By: Murdock of the Senate

and

Newton of the House

POLICY COMMITTEE RECOMMENDATION

An Act relating to agriculture; amending 2 O.S. 2021, Sections 7-401, 7-403, 7-415, and 7-421, which relate to the Oklahoma Milk and Milk Products Act; updating statutory references; modifying definitions; clarifying jurisdictional authority of dairy inspection and grading programs; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 7-401, is amended to read as follows:

Section 7-401. Sections ~~4~~ 7-401 through ~~23~~ 7-421 of this ~~act~~ title shall be known and may be cited as the "Oklahoma Milk and Milk Products Act".

SECTION 2. AMENDATORY 2 O.S. 2021, Section 7-403, is amended to read as follows:

Section 7-403. As used in the Oklahoma Milk and Milk Products Act:

1 1. "Bulk milk hauler/sampler" means any person collecting
2 official samples who may transport raw milk from a farm or raw milk
3 products to or from a milk plant, receiving station, or transfer
4 station and has in his or her possession a permit from any state to
5 sample these products;

6 2. "Dairy farm" means any premises owned or operated by a ~~"milk~~
7 ~~producer"~~ milk producer where one or more ~~cows or goats~~ hooved
8 mammals are kept, and from which a part or all of the milk or milk
9 products is sold or offered for sale;

10 3. ~~"Goat milk" means the lacteal secretion, practically free~~
11 ~~from colostrum, obtained by the complete milking of one or more~~
12 ~~healthy goats;~~

13 4. "Grade A milk and milk products" means milk and milk
14 products at any stage from production through pasteurization and
15 packaging, that are of the minimum quality and are produced, hauled,
16 processed and distributed under conditions which meet the
17 requirements of the Oklahoma Milk and Milk Products Act;

18 5. 4. "Inhibitor" means any chemical or antibiotic substance
19 which inhibits or retards the growth of bacteria in milk;

20 6. 5. "Milk" means the lacteal secretion, practically free from
21 colostrum, obtained by the complete milking of one or more healthy
22 ~~cows~~ hooved mammals, which contains not less than eight and one-
23 fourth percent (8 1/4%) milk solids-not-fat and not less than three
24 and one-fourth percent (3 1/4%) milk fat. The term ~~"milk"~~ milk

1 shall include ~~goat~~ hooved mammal milk, fluid market milk, and milk
2 products for the purpose of distribution to the consumer, and may
3 contain optional ingredients defined by the State Board of
4 Agriculture and shall include ungraded and Grade A milk;

5 ~~7.~~ 6. "Milk contact surface" means any pipe, tank, equipment,
6 or facility which contacts or may contact milk during the producing,
7 transporting, processing, or distributing of milk and milk products;

8 ~~8.~~ 7. "Milk distribution center" means any premises, owned or
9 operated by a ~~"milk distributor"~~ milk distributor, which distributes
10 and sells or offers to sell milk and milk products but does not
11 include an establishment which sells or offers to sell Grade A milk
12 and milk products at retail;

13 ~~9.~~ 8. "Milk facility" means the producing, processing,
14 transporting, or distributing premises and facilities which operate
15 under an appropriate and valid permit issued by the Commissioner, in
16 compliance with the Oklahoma Milk and Milk Products Act and the
17 rules of the Board;

18 ~~10.~~ 9. "Milk fat" or "butter fat" means the fat of milk;

19 ~~11.~~ 10. "Milk plant" means any premises owned or operated by a
20 ~~"milk processor"~~ milk processor where milk or milk products are
21 collected, manufactured, processed, pasteurized, bottled, stored, or
22 prepared for distribution for commercial purposes including, but not
23 limited to, a receiving or transfer station;

~~12.~~ 11. "Milk products" means those products produced or obtained from milk or any component or product of milk and defined by the Board, including Grade A milk products, ungraded raw milk, and ungraded milk products;

~~13.~~ 12. "Milk tank truck cleaning facility" means any premises or establishment, separate from a milk plant, receiving station, or transfer station, where a milk tank truck is cleaned and sanitized;

~~14.~~ 13. "Milk tank truck driver" means any person transporting raw or pasteurized milk products between a milk plant, receiving station, or transfer station;

~~15.~~ 14. "Milk transportation company" means any person responsible for a milk tank truck;

~~16.~~ 15. "Pasteurized milk" means Grade A raw milk which has been pasteurized and stored in accordance with the chemical, bacteriological, and temperature standards required by the Board;

~~17.~~ 16. "Receiving station" means any premises where raw milk is received, collected, handled, stored, or cooled and prepared for further transporting;

~~18.~~ 17. "Retail food store" means any establishment which offers for retail sale packaged or bulk food goods for human consumption;

~~19.~~ 18. "Transfer station" means any establishment or premises where milk or milk products are transferred directly from one milk tank truck to another; and

1 ~~20.~~ 19. "Ungraded milk products" and "manufacture grade milk
2 products" include, but are not limited to, butter, cheese, dry milk,
3 condensed milk, filled or evaporated milk, frozen dairy dessert and
4 mello-drink products.

5 SECTION 3. AMENDATORY 2 O.S. 2021, Section 7-415, is
6 amended to read as follows:

7 Section 7-415. A. A fee of one cent (\$0.01) shall be assessed
8 on each one hundred (100) pounds of raw milk produced in this state.
9 Each co-op, marketing agent, or processing plant where the raw milk
10 is not collected by a co-op or marketing agent, doing business in
11 ~~Oklahoma~~ this state shall pay the fees each calendar month to the
12 Commissioner of Agriculture to be credited to the Milk and Milk
13 Products Inspection Revolving Fund of the State Treasury.

14 B. There is hereby assessed a fee of one cent (\$0.01) on each
15 one hundred (100) pounds of Grade A milk or milk products processed
16 or offered for retail sale in ~~Oklahoma~~ this state. Each milk plant
17 doing business in ~~Oklahoma~~ this state shall pay the fees each
18 calendar month to the Commissioner to be credited to the Milk and
19 Milk Products Inspection Revolving Fund of the State Treasury.

20 C. A fee assessed on each one hundred (100) pounds of milk or
21 milk products produced or processed in another state and imported
22 into ~~Oklahoma~~ shall be the same amount assessed on milk or milk
23 ~~products shipped to that state from Oklahoma~~ this state. The person
24 shipping or causing the shipment of milk or milk products shall be

1 responsible for paying the fees semi-annually on January 1 and July
2 1 of each year to the Commissioner and such fees shall be credited
3 to the Milk and Milk Products Inspection Revolving Fund of the State
4 Treasury.

5 SECTION 4. AMENDATORY 2 O.S. 2021, Section 7-421, is
6 amended to read as follows:

7 Section 7-421. The Oklahoma ~~State~~ Department of Agriculture,
8 Food, and Forestry is hereby designated as the official state agency
9 of this state for purposes of cooperating with and implementing the
10 dairy inspection and grading program under the jurisdiction of the
11 United States Department of Agriculture, the United States
12 Department of Health and Human Services, the United States Public
13 Health Service, and the United States Food and Drug Administration.

14 SECTION 5. This act shall become effective November 1, 2026.

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